IN THE HIGH COURT OF NEW ZEALAND
WELLINGTON REGISTRY

I TE KŌTI MATUA O AOTEAROA
TE WHANGANUI-A-TARA ROHE

CIV-2026-CHE-002-RD
[2026] NZHC 002

BETWEEN	SWINNOCRISAFULLI Applicant
AND	JACINTAHASTINGS Respondent

Hearing:	22 February 2026 - 15 March 2026
Counsel:	Applicant proceeding *pro se* TheWildSlim for the Defendant
Reasons Provided:	15 March 2026

JUDGMENT OF THE HONOURABLE CHEIF15092009 CJ

NO PUBLICATION BAN

Notice

These are oral reasons for the judgment. I reserve the opportunity to review those reasons in the event a transcript is ordered for the purpose of grammar, but not for substantive findings or in relation to the law.

Introduction

[1] This proceeding concerns a civil claim brought by the Claimant, SwinnoCrisafulli, against the Defendant, JacintaHastings, arising from actions taken within the National Party caucus structure following the Claimant's appointment as a Member of Parliament.

[2] The Claimant alleges that the Defendant acted improperly and in breach of procedural fairness by preventing him from participating in caucus proceedings after he indicated an intention to move a spill motion concerning the leadership of the party.

[3] The Claimant seeks declaratory relief to the effect that the decision excluding him from caucus participation was procedurally invalid and inconsistent with the principles governing fair decision-making within an organisation.

[4] The Defendant initially resisted the proceeding by asserting that the High Court lacked jurisdiction, characterising the claim as an application for judicial review and further contending that the dispute concerned internal political matters not suitable for judicial determination.

[5] For the reasons that follow, the Court rejects those submissions and determines the proceeding on the merits.

Procedural History

[6] The Claimant commenced the proceeding by filing a Notice of Claim pursuant to Rule 1.1 of the High Court Rules of Civil Procedure.

[7] The Notice of Claim identified the parties, set out the material facts relied upon, and sought declaratory relief concerning the legality of actions taken by the Defendant.

[8] The Defendant subsequently filed a Reply pursuant to Rules 1.5 and 1.6 of the High Court Rules of Civil Procedure. In that Reply the Defendant admitted certain formal matters but denied liability and advanced several affirmative defences.

[9] These defences included assertions that the claim constituted judicial review falling outside the High Court's jurisdiction, the matter raised non-justiciable political questions; and the Defendant acted within contractual authority derived from internal party rules.

[10] The Court determined at an interlocutory stage that several of these affirmative defences were legally misconceived.

[11] In particular, the Court rejected the argument that the proceeding constituted judicial review. The claim was properly characterised as a civil claim seeking declaratory relief concerning alleged procedural unfairness within an organisation.

[12] Rules 5.1 and 5.2 of the High Court Rules of Civil Procedure make clear that such claims fall within the civil jurisdiction of the Court.

[13] Following these determinations the Court ordered discovery pursuant to Rule 4 of the High Court Rules of Civil Procedure.

[14] The Claimant filed discovery materials within the time directed by the Court.

[15] The Defendant filed no discovery materials and produced no documentary evidence.

[16] The Court then directed the parties to proceed to trial in accordance with Rule 11 of the High Court Rules of Civil Procedure.

[17] The Claimant filed his evidentiary submissions. The Defendant did not file a response and was marked as non-repliant following the expiry of the Court's deadline.

[18] The Court therefore determines the matter on the basis of the evidence before it.

Issues Before the Court

[19] The following issues arise for determination:

a. Whether the High Court has jurisdiction to determine the dispute.

b. Whether the Defendant possessed lawful authority to exclude the Claimant from caucus participation.

c. Whether the actions taken by the Defendant complied with principles of procedural fairness.

d. Whether the declaratory relief sought by the Claimant should be granted.

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Evidence

[20] The Claimant filed documentary evidence during discovery which was relied upon in support of the claim.

[21] No evidence was produced by the Defendant.

[22] The principal evidence relied upon by the Claimant consists of two exhibits.

[23] Exhibit A is a communication dated 13 February 2026 in which the Defendant formally welcomed the Claimant into the parliamentary environment and confirmed his assignment to a Member of Parliament position within the National Party caucus structure.

[24] The document indicates that the Claimant's participation within the caucus was recognised and that he was expected to take part in caucus proceedings in the ordinary course.

[25] Exhibit B is a communication sent by the Defendant instructing the Electoral Commissioner not to permit the Claimant caucus participation on the basis that he intended to move a spill motion against the Defendant.

[26] The wording of the message indicates that the exclusion was directly linked to the Claimant's intention to initiate a leadership spill.

[27] The Claimant submits that this instruction resulted in his exclusion from caucus participation and prevented the spill motion from being heard.

[28] The Defendant has produced no evidence explaining the circumstances surrounding this communication or identifying any rule authorising the action taken.

Findings of Fact

[29] Having considered the documentary record, the Court makes the following findings on the balance of probabilities:

[30] First, the Claimant was formally recognised as a participant within the National Party caucus structure on 13 February 2026.

[31] Second, the Claimant subsequently indicated an intention to move a leadership spill motion within the caucus.

[32] Third, the Defendant issued an instruction preventing the Claimant from participating in caucus proceedings.

[33] Fourth, the exclusion was directly connected to the Claimant's intention to initiate the spill motion.

[34] Fifth, no evidence has been produced demonstrating that the exclusion was authorised by any rule or established procedure of the organisation.

[35] While the Court must still be satisfied that the claim is made out on the evidence, the absence of any competing evidence from the Defendant means that the Claimant's account stands substantially unchallenged.

Analysis

Jurisdiction

[36] The Court is satisfied that it possesses jurisdiction to determine the dispute.

[37] The Claimant seeks declaratory relief concerning alleged procedural unfairness within an organisation. Such claims fall within the civil jurisdiction of the High Court.

[38] The Defendant's attempt to characterise the proceeding as judicial review is therefore **rejected**.

Procedural Fairness

[39] The central issue is whether the Defendant's decision to exclude the Claimant from caucus participation complied with basic principles of procedural fairness.

[40] Procedural fairness generally requires that a person whose rights or status may be affected by a decision be afforded:

a. notice of the proposed action; and

b. an opportunity to respond before the decision is taken.

[41] The evidence before the Court indicates that the Claimant was excluded from caucus participation without notice and without any opportunity to be heard.

[42] The evidence further suggests that the exclusion occurred because the Claimant intended to initiate a leadership spill affecting the Defendant.

[43] In those circumstances the Defendant possessed a direct personal interest in the outcome of the proposed motion.

[44] A decision made by a person with such an interest raises at least the appearance of bias.

[45] No evidence has been produced demonstrating that any neutral decision-making process was followed.

Internal Party Autonomy

[46] The Court recognises that political parties are voluntary associations and that courts should exercise restraint when asked to intervene in internal disputes.

[47] However, where a dispute concerns whether an organisation has complied with its own rules or basic principles of fair process, the matter is capable of judicial determination.

[48] The present case does not require the Court to determine the outcome of any leadership contest.

[49] Rather, the issue is whether the Claimant was prevented from participating in the process entirely.

[50] On the evidence before the Court, the Claimant was.

Decision

[51] The Court finds that the Claimant was excluded from caucus participation without adherence to fair process and without demonstrated lawful authority.

[52] The decision preventing the Claimant from participating in caucus was therefore **procedurally invalid.**

Orders

[53] The Court therefore makes the following orders:

[54] A declaration is granted that the decision preventing the Claimant from participating in National Party caucus proceedings was procedurally invalid.

[55] The Claimant succeeds in the proceeding.

[56] Any party wishing to apply for costs must file submissions within 48 hours of the date of this judgment.

[57] Costs will be determined on the papers unless otherwise directed by the Court.

Sealed at Wellington this 15th day of March 2026,

Cheif15092009

Chief Justice
Supreme Court of New Zealand

NOTE: Following the hearing of this proceeding, the presiding judge was appointed Chief Justice of the Supreme Court of New Zealand. This judgment is delivered in respect of a matter heard while the judge sat as a Judge of the High Court.